

		“I wasn’t aware I wasn’t involved in that case.” (Gulino Decl., ¶¶13-14.) But that is consistent with Mr. Isaacs’s declaration – he learned of this case after default had been entered and called to ask for a stipulation to set it aside. Mr. Isaacs, who represented Defendants in the underlying actions, was not asked to accept service, was not informed of this lawsuit after it was filed, and was not warned prior to entry of default. Plaintiff requests compensation for attorney’s fees incurred because of defendants’ failure to appear. The Court finds \$2,000 in such fees reasonable and imposes that amount as just terms of discretionary relief under Code of Civil Procedure section 473(b). Defendants shall pay \$2,000 to plaintiff’s counsel, Gulino Law Office, within 30 days. Defendants shall serve notice of this ruling.
2.	2026-1562665 adQUADRANT , Inc. vs. Bett Botanicals Inc.	The Demurrer brought by Defendant Bett Botanicals, Inc. is overruled in its entirety. The complaint alleges a direct contractual relationship between plaintiff and Bett Botanicals, Inc. (Complaint, ¶ 6 & ex. A.) It therefore does not depend on alter-ego liability to state a claim against this defendant. Any deficiency in the alter-ego allegations does not defeat the direct contract claim. (Code Civ. Proc., § 430.10, subd. (e).) Defendant next argues that plaintiff’s allegation of contractual performance is conclusory. (Demurrer, p. 6, lines 4-7.) However, performance may be alleged in general terms. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1389.) “It is sufficient for a plaintiff to simply allege that he has ‘duly performed all the conditions on his part.’” (<i>Ibid.</i>; see also Code Civ. Proc., § 457.) Based on the above, Plaintiff’s allegation that it “performed all obligations required of it under the Agreement, except for those obligations that were waived or excused by the conduct of Bett and/or Does 1-10, inclusive” (Complaint, ¶15) is sufficient. Thereafter, Defendant challenges Plaintiff’s interpretation of the Agreement and, specifically, whether the Agreement provides a “minimum contract price.” As noted by the parties and alleged in the Complaint, the Agreement allows either party to terminate the agreement “without

cause upon providing thirty (30) days prior written notice.” (Complaint at ¶6 of Complaint and Exhibit A thereto, at §3.3; see also Complaint at ¶7.)

Relevant to the dispute herein, the Agreement proceeds to state: “Termination of this agreement does not relieve either party of...any minimum contract price specified in the Insertion Order(s) less any amount previously billed and paid by Advertiser...” (Complaint, ¶6 and Exhibit A thereto, at §3.3.)

Drawing from the above language, Defendant argues that Plaintiff “does not plead any specific ‘minimum contract price’ term beyond reciting the monthly fee amounts” and “fails to identify any clause stating that, upon termination, Bett Botanicals must pay all remaining months as liquidated minimums, rather than just amounts earned or accrued.” (Demurrer: 5:19-22.)

The above argument was anticipated, as the Complaint alleges as follows: “Bett apparently contended that there is no minimum contract price specified in the agreement. This argument is baseless given the agreement and addendum clearly provide a minimum of: (1) \$7,500 a month for TikTok Shop Store Management, Affiliate Recruitment and Strategy, and TikTok Shop Ads Management; (2) \$4,000 a month for Shoppable Content; and (3) \$15,000 a month for Google and Meta, for the entire agreed-upon term through August 17, 2026.” (Complaint, at ¶11.)

Liberally interpreting the above allegation, as the Court must, the above alleges a “minimum contract price.” (See Code Civ. Proc., § 452.)

While Defendant clearly takes the position that the above allegation is contrary to the terms of the Agreement, no clearly contradictory language has been identified by Defendant. At best, Defendant has identified an ambiguity in the Agreement, as no reference to a “minimum contract price” could be located, beyond the language quoted above from §3.3.

The termination provision refers to the “minimum contract price specified in the Insertion Order.” It is unclear whether that reference identifies the agreement attached to the complaint or a separate document. (Complaint, ¶ 6 & ex. A, § 3.3.)

“[W]here an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement.” (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239.) “So long as the pleading does not place a clearly erroneous construction upon the provisions of the

		contract, in passing upon the sufficiency of the complaint, [the Court] must accept as correct plaintiff's allegations as to the meaning of the agreement." (<i>Ibid.</i>) "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible." (<i>Aragon-Haas v. Family Security Ins. Services, Inc.</i>, supra, 231 Cal.App.3d at 239.) The agreement is reasonably susceptible to plaintiff's pleaded interpretation that the attached agreement constitutes the referenced Insertion Order and that the specified fees for the agreed term establish the minimum contract price. That interpretation must be accepted at the pleading stage. This ground for demurrer therefore fails. Lastly, Defendant asserts that Plaintiff has not alleged how the minimum contract price is calculated, "which specific invoices remain unpaid, when the invoice(s) became due, or how the 'remaining owed' column is calculated." (Demurrer: 6:8-11.) However, the Complaint clearly alleges that \$191,306.45 is owed under the Agreement. (§10 of Complaint.) Moreover, the Complaint attaches a "Statement of Account," which includes Plaintiff's calculations of the amount owed. (§10 of Complaint and Exhibit C thereto.) Defendant cites no authority which requires any greater specificity in pleading and, consequently, the demurrer is overruled in its entirety.
3.	2025-1521814 Nguyen vs. Nguyen	<i>On the Court's own motion, Demurrer to Amended Complaint is continued to 09/30/2026.</i>
4.	2026-1569037 Santiago vs. Fernandez Viramontes	Defendants Noe Fernandez Viramontes and Florisa Fernandez's motion to strike is denied. Counsel exchanged emails before the motion was filed but did not confer in person, by telephone, or by video conference as required by Code of Civil Procedure section 435.5, subdivision (a). An insufficient meet-and-confer process is not a ground for granting or denying the motion. The Court therefore reaches the merits. (Code Civ. Proc., § 435.5, subd. (a)(4).) A motion to strike may challenge a request for punitive damages unsupported by the pleading. The Court considers the complaint as a whole, assumes the truth of properly pleaded facts, and reads the